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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
13/221,391	08/30/2011	Paul J. Mollinger	EXT2532-016D	3452

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EXAMINER	
CHAPMAN, JEANETTE E	
ART UNIT	PAPER NUMBER
3633	
MAIL DATE	DELIVERY MODE
03/13/2012	PAPER

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Office Action Summary	Application No.	Applicant(s)	
	13/221,391	MOLLINGER ET AL.	
	Examiner	Art Unit	
	JEANETTE E. CHAPMAN	3633	

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE *3* MONTH(S) OR THIRTY (30) DAYS, WHICHEVER IS LONGER, FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

1)☒ Responsive to communication(s) filed on *26 January 2012*.

2a)☐ This action is **FINAL**. 2b)☒ This action is non-final.

3)☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on _____; the restriction requirement and election have been incorporated into this action.

4)☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims

5)☒ Claim(s) *1-20* is/are pending in the application.

5a) Of the above claim(s) _____ is/are withdrawn from consideration.

6)☐ Claim(s) _____ is/are allowed.

7)☒ Claim(s) *1-20* is/are rejected.

8)☐ Claim(s) _____ is/are objected to.

9)☐ Claim(s) _____ are subject to restriction and/or election requirement.

Application Papers

10)☐ The specification is objected to by the Examiner.

11)☐ The drawing(s) filed on _____ is/are: a)☐ accepted or b)☐ objected to by the Examiner.

Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).

Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).

12)☐ The oath or declaration is objected to by the Examiner. Note the attached Office Action or form PTO-152.

Priority under 35 U.S.C. § 119

13)☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).

a)☐ All b)☐ Some * c)☐ None of:

1.☐ Certified copies of the priority documents have been received.

2.☐ Certified copies of the priority documents have been received in Application No. _____.

3.☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

* See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

1) ☒ Notice of References Cited (PTO-892)
2) ☐ Notice of Draftsperson's Patent Drawing Review (PTO-948)
3) ☒ Information Disclosure Statement(s) (PTO/SB/08) Paper No(s)/Mail Date *11/30/2011*.
4) ☐ Interview Summary (PTO-413) Paper No(s)/Mail Date. _____ .
5) ☐ Notice of Informal Patent Application
6) ☐ Other: _____.

Claim Rejections - 35 USC § 102

The following is a quotation of the appropriate paragraphs of 35 U.S.C. 102 that form the basis for the rejections under this section made in this Office action:

> A person shall be entitled to a patent unless –
>
> (b) the invention was patented or described in a printed publication in this or a foreign country or in public use or on sale in this country, more than one year prior to the date of application for patent in the United States.

Claim 1, 3,5,6,7, 11, 15 and 18 are rejected under 35 U.S.C. 102(b) as being clearly anticipated by Culpepper et al (6029415).

Claim 1.

Culpepper et al discloses a paneling unit 10/12, figure 5, figure 6 comprising: a siding portion10; and a backing portion 12 secured to said siding portion such that a gap adjacent 12/54 is formed between said siding portion 10 and said backing portion 12, said gap configured to receive an edge 53a of a siding portion of an adjacent paneling unit 10 to facilitate formation of a lap joint 53a/53b between said paneling unit 10/12 and said adjacent paneling unit 10/12.

claim 3.

Culpepper et al discloses the paneling unit of claim 1 wherein said siding portion is a vinyl siding panel 10.

Claims 5 and 15.

Culpepper et al discloses the paneling unit of claim 1and 11 wherein said gap adjacent 54/1250a/b is facilitated by a recess formed along an edge 50a/50b of said backing portion 12. See figures 5 and 6.

claims 6 and 18.

Culpepper et al discloses (original) the paneling unit of claim 5 and 18 wherein said recess adjacent 54/12/50a/b extends along a major portion of said edge 50a/50b of said backing portion 12.

claim 7.

Culpepper et al discloses the paneling unit of claim 5 wherein said recess adjacent 54/12/50a/b extends along an entire edge50a/b of said backing portion 12.

Claim 11.

Culpepper et al discloses a paneling unit A/B/10/12, FIGURES 5 AND 6 comprising: a siding portion10 having an attachment flange 53a/53b; and a backing portion 12 secured to said siding portion such that a gap adjacent 12/54/50a/b is formed between said siding portion 10 and said backing portion 12, said gap adjacent 12/54/50a/b extending from a bottom edge of said backing portion12 up to a point approximately where said backing portion is proximate to said attachment flange 53a/b of said siding portion 10;

wherein said is gap adjacent 12/54/50a/b configured to receive an edge 50a/b of a siding portion 53a of an adjacent paneling unit to facilitate formation of a lap joint 53a/b between said paneling unit A/B and said adjacent paneling unit A/B.

claim 13.

Culpepper et al discloses the paneling unit of claim 1 1 wherein said siding portion is a vinyl siding panel.

Claim Rejections - 35 USC § 103

The following is a quotation of 35 U.S.C. 103(a) which forms the basis for all obviousness rejections set forth in this Office action:

> (a) A patent may not be obtained though the invention is not identically disclosed or described as set forth in section 102 of this title, if the differences between the subject matter sought to be patented and the prior art are such that the subject matter as a whole would have been obvious at the time the invention was made to a person having ordinary skill in the art to which said subject matter pertains. Patentability shall not be negatived by the manner in which the invention was made.

Claims 4, 8-10, 14, 16-20 are rejected under 35 U.S.C. 103(a) as being unpatentable over Culpepper et al.

claims 4 and 14

Mowry discloses the siding portion may be of PVC or other suitable materials; other suitable and well known materials are plastic composite including cellulosic filler. One of ordinary skill in the art of siding and building products would have appreciated all well known materials and used or employed any of those suitable and offering the characteristics desired in the panel.

claims 8-9 and 16-17

The dimensions of the relief channel/gap has not been shown to be critical to the structure and function of the invention; further applicant has not shown the criticality of the recited dimensions; meaning would a different values significantly alter the structure and function of the invention

Claim 10.

Chamfer are obvious variant to tongue and groove attachments; it would have been obvious to include the chamfer to enable a smoother finished appearance and a smoother tongue and groove/channel attachment.

Claim 19.

Culpepper et al discloses a paneling unit A/B/10/12, FIGURES 5 AND 6 comprising: a siding portion10 having an attachment flange 53a/53b; and a backing portion 12 secured to said siding portion such that a gap adjacent 12/54/50a/b is formed between said siding portion 10 and said backing portion 12, said gap adjacent 12/54/50a/b extending from a bottom edge of said backing portion12 up to a point approximately where said backing portion is proximate to said attachment flange 53a/b of said siding portion 10;

The dimensions of the relief channel/gap has not been shown to be critical to the structure and function of the invention; further applicant has not shown the criticality of the recited dimensions; meaning would a different values significantly alter the structure and function of the invention

wherein said is gap adjacent 12/54/50a/b configured to receive an edge 50a/b of a siding portion 53a of an adjacent paneling unit to facilitate formation of a lap joint 53a/b between said paneling unit A/B and said adjacent paneling unit A/B.

claim 20.

Culpepper et al discloses (original) the paneling unit of claim 19 wherein said gap is formed by a recess adjacent 54/12/50a/b extends along a major portion of said edge

50a/50b of said backing portion 12.

Claims 2 and 12 are rejected under 35 U.S.C. 103(a) as being unpatentable over Culpepper et al in view of Mowery et al (7040067).

claims 2 and 12.

Mowery et al '067 discloses the paneling unit of claim 1 and 11 wherein said backing portion is comprised of a foamed plastic 42. See Column 4, lines 63-68.

Double Patenting

The nonstatutory double patenting rejection is based on a judicially created doctrine grounded in public policy (a policy reflected in the statute) so as to prevent the unjustified or improper timewise extension of the "right to exclude" granted by a patent and to prevent possible harassment by multiple assignees. A nonstatutory obviousness-type double patenting rejection is appropriate where the conflicting claims are not identical, but at least one examined application claim is not patentably distinct from the reference claim(s) because the examined application claim is either anticipated by, or would have been obvious over, the reference claim(s). See, e.g., *In re Berg*, 140 F.3d 1428, 46 USPQ2d 1226 (Fed. Cir. 1998); *In re Goodman*, 11 F.3d 1046, 29 USPQ2d 2010 (Fed. Cir. 1993); *In re Longi*, 759 F.2d 887, 225 USPQ 645 (Fed. Cir. 1985); *In re Van Ornum*, 686 F.2d 937, 214 USPQ 761 (CCPA 1982); *In re Vogel*, 422 F.2d 438, 164 USPQ 619 (CCPA 1970); and *In re Thorington*, 418 F.2d 528, 163 USPQ 644 (CCPA 1969).

A timely filed terminal disclaimer in compliance with 37 CFR 1.321(c) or 1.321(d) may be used to overcome an actual or provisional rejection based on a nonstatutory

double patenting ground provided the conflicting application or patent either is shown to be commonly owned with this application, or claims an invention made as a result of activities undertaken within the scope of a joint research agreement.

Effective January 1, 1994, a registered attorney or agent of record may sign a terminal disclaimer. A terminal disclaimer signed by the assignee must fully comply with 37 CFR 3.73(b).

Claims 1-20 are rejected on the ground of nonstatutory obviousness-type double patenting as being unpatentable over claims 1-20 of U.S. Patent No. 8,006,455. Although the conflicting claims are not identical, they are not patentably distinct from each other because the claims of the present application are a broader version of the claims presented in patent ‘455 .

Any inquiry concerning this communication or earlier communications from the examiner should be directed to JEANETTE E. CHAPMAN whose telephone number is (571)272-6841. The examiner can normally be reached on monday-friday, 9:00am-5:00pm.

If attempts to reach the examiner by telephone are unsuccessful, the examiner’s supervisor, Brian Glessner can be reached on 571-272-6754. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see http://pair-direct.uspto.gov. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/JEANETTE E CHAPMAN/
Primary Examiner, Art Unit 3633